

**In the Supreme Court of Bangladesh
High Court Division
(Special Original Jurisdiction)**

Present:

Mr. Justice Mustafa Zaman Islam

And

Mr. Justice Md. Atabullah

Writ Petition no. 242 of 2001.

In the matter of:

An application under Article 102 read with
Article 44 of the Constitution of People's
Republic of Bangladesh.

In the matter of:

Md. Ilias Kanchan alias Mohammad Ilias
Kanchan and others

.....

petitioners.

-Versus-

Bangladesh, represented by the
Secretary, Ministry of Law and
Parliamentary Affairs, Bangladesh
Secretariat, Ramna, Dhaka and others

..... Respondents.

No one appears,

..... For the petitioners.

Mr. Tushar Kanti Roy, D.A.G. with

Mr. Md. Salim Azad. and

Ms. Anis ul Mawa, A.A.G.

..... For the Respondents.

Heard and Judgment

delivered on: 11.01.2024.

Mustafa Zaman Islam, J:

By this Rule, the petitioners by filing an application
under Article 102 read with Article 44 of the Constitution of

People's Republic of Bangladesh, the petitioners obtained this Rule Nisi calling upon the respondents to show cause as to why the Public Safety Act, 2000 should not be held to be unconstitutional and void as being violative of the fundamental rights of the petitioners guaranteed by Articles 27, 31, 32 and 35 of the Constitution and/or such other or further order or orders passed as to this court may seem fit and proper.

Since a challenge against the Jana Nirapatta Ain, 2000 has ended in a dissenting judgment except on section 16 and 18(1)(Kha) of the Act, let petitioners be released on ad-interim bail to the satisfaction of the Deputy Commissioner, Chattogram in Anwara Police Station case no. 19 dated 26.11.2000 under sections 4/7(Ka)/10/12 of the Jano Nirapotta Ain, 2000 read with sections 326/323 of the Penal Code, 1860 now pending in the Court of Jana Nirapatta Tribunal, Chattogram.

The police submitted charge-sheet under the said offence and the learned Magistrate took cognizance of the above offence. The case record has been transferred before the learned Jana Nirapatta Tribunal, Chattogram for trial.

Feeling aggrieved the petitioners preferred the instant Writ Petition and obtained the present Rule.

No one appears on behalf of the petitioners to support the Rule.

The learned Deputy Attorney General appearing on behalf of the respondents.

In order to appreciate his submissions we have gone through the record and given our anxious consideration to his submissions.

On going to the materials on record it transpires that the case was lodged under sections 4/7(Ka)/10/12 of the Jano Nirapotta Ain, 2000 read with sections 326/323 of the Penal Code, 1860.

It is pertinent to point out that the জননিরাপত্তা (বি শষ বিধান) আইন, 2000 was repealed vide Act no. VI of 2002 dated 2nd April, 2002. Therefore, the instant proceeding has no legal force.

In view of foregoing narrative the Rule is disposed of. The proceeding of Anwara Police Station case no. 19 dated 26.11.2000 under sections 4/7(Ka)/10/12 of the Jano Nirapotta Ain, 2000 read with sections 326/323 of the Penal Code, 1860

now pending in the Court of Jana Nirapatta Tribunal,
Chattogram is hereby quashed.

The office is directed to communicate the judgment and
order at once.

Mustafa Zaman Islam

Md. Atabullah, J:

I agree.

Md. Atabullah